

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 17, 2026 to Plaintiffs Taryn Ham and Ryan Ham and Counsel Strategic Legal Practices, APC for failure to appear on June 15, 2026 as ordered on February 6, 2026 and failure to provide the Court with an explanation regarding status of discovery as to the Motion for Summary Judgment. Defendant FCA US, LLC's Motion for Summary Judgment was on calendar for hearing on January 26, 2026 and Plaintiffs sought a continuance pursuant to CCP § 437c(h), which was granted. On February 9, 2026, Plaintiffs' counsel was at the hearing when the June 15, 2026 date was selected for hearing on the Motion for Summary Judgment. Plaintiffs did not file an Amended Opposition, did not provide the Court an update regarding discovery, and did not appear at the hearing. Plaintiffs filed a written response to the order to show cause which provides an explanation for the nonappearance. Based on this explanation, the Court discharges the order to show cause re: sanctions and will not impose any monetary sanctions.

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion for Leave to File First Amended Cross Complaint: Cross-Complainant Jeremiah Jese Brooke moves for an order granting leave to file a First Amended Cross Complaint to: 1) include information about the Litigation Guarantee in this action and to reference and/or specifically name lienholders as cross-defendants; 2) add James Collins, deceased, through his Estate or Personal Representative as a cross-defendant; 3) specify unknown cross-defendants as those with interests adverse to Cross-Complainant Jeremiah Jese Brooke.

Neither the original Motion, nor the Declaration of Elizondo Re: Correction and Substitution of Exhibit were timely noticed for today's hearing date. Service by US Mail only adds 5 calendar days to service deadlines. CCP § 1005. The Motion will either be denied or continued to a future hearing date at counsel's request. The Court also notes that Cross-Complainant prematurely filed the Amended Cross-Complaint on July 2, 2026 without leave of Court. The clerk is directed to strike the July 2, 2026 Amended-Cross Complaint.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Leave to File Supplemental Verified Petition for Writ of Mandate: Petitioner, Allen McCloskey, seeks leave to file a Supplemental Verified Petition pursuant to CCP § 473(a)(1) and 464 to add a separate California Public Records Act (CPRA) request submitted on December 23, 2025, and facts pertaining to a fire which occurred on June 12, 2026. Respondents oppose the motion.

CCP § 473(a)(1). "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." CCP § 473(a)(1).

Petitioner does not seek to add or strike the name of a party, correct a mistake in the name of a party, or correct a mistake in any other regard. CCP § 473(a)(1) also allows the court to grant a party leave to amend any pleading in other particulars "absent a showing of prejudice to the adverse party." *Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154. Here, the December and November CPRA requests are two distinctly separate records request. The incorporation of the December CPRA request is prejudicial because the original Petition has already been briefed and it confuses the issues of each separate request.

Additionally, the motion is also procedurally defective. A motion under CCP § 473(a)(1) must comply with the

requirements of CRC 3.1324(b). CRC 3.1324(b) requires the filing of a separate declaration that specifies “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” The supporting declaration fails to address the effect of the amendments, when the facts giving rise to the amendments were discovered, and the reasons the request for amendment was not made earlier. The December 23, 2026, CPRA request was submitted over 6 months ago. No explanation has been provided regarding why leave to add the December CPRA request was not filed sooner.

CCP § 464. “The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer, alleging facts material to the case occurring after the former complaint or answer.” CCP § 464. While both the December CPRA request and June 12, 2026, fire occurred after the filing of the original Petition, the motion fails to explain how each event is factually material to the November 2025 CRPA request.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.

MEGASTAR FINANCIAL CORP VS. TURNER, ET AL.

CASE NUMBER: 25CV-0207787

Tentative Ruling on Review: This matter is on calendar for review regarding status of default. Default was entered as to Defendant Tessa A. Garrett on August 12, 2025. Default was entered as to Defendant Kyle K. R. Turner on July 8, 2026. Defendant The Secretary of Housing and Urban Development stipulated to a judgment on July 18, 2025. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a judgment is not on file prior to the next hearing, Plaintiff is ordered to file a status statement no less than five court days prior to the hearing explain the delay. **No appearance is necessary on today’s calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. HIGHFILL

CASE NUMBER: 25CV-0208672

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. Defendant’s request for judicial notice is GRANTED.

Defendant alleges two grounds for the exoneration of the bond. First, they allege that the criminal defendant was referred to probation and by operation of law that the bond was exonerated pursuant to Penal Code § 1195 and *People v. Safety National Insurance Co.* (2007) 150 Cal.App.4th 11. The moving party is incorrect, as the minute order from January 14, 2025 does not show a referral to probation but rather that there was a delayed sentencing. Defendant has failed to establish grounds for exoneration pursuant to Penal Code § 1195.

Next, Defendant argues that Court failed to forfeit the bond in open court. Penal Code § 1305(a) requires the bond to be forfeited in open court. The February 13, 2025 minute order indicates the bond was forfeited. However, the court transcript shows that the judge failed to declare the bond forfeited in open court. Based on the foregoing, the Court finds that exoneration is warranted pursuant to Penal Code § 1305(a) and *People v. Amwest Surety Ins.* (2004) 125 Cal.App.4th 547, 550.

The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney’s Fees: Respondent Mark Farmer moves for recovery of attorney’s fees. The motion was originally calendared for hearing on July 6, 2026, but the hearing was continued to today’s date. Petitioner Candilyn Perry was timely served with the motion by mail. On July 22, 2026, Petitioner, now